

		incurred for the services rendered during that period. Although the hourly rate claimed here is substantial for a collection matter, it does not seem unreasonable in the context of this case. The Court thus finds that the \$52,830 sum claimed for fees incurred between December 2022 and April 2023 is reasonable in context here. The total post-judgment fees which Plaintiff may recover, up through the end of April 2023, will thus be \$125,490 (for the \$72,660 sum already included per the prior MOCAJ, and an additional \$52,830 here). <i>Counsel for MPs is to give notice of this ruling.</i>
3.	Ricks v. Wine Cellar Designers Group, LLC 22-1274692	The unopposed demurrer by defendant Wine Cellar Designers Group, LLC to the complaint filed by plaintiff Tyler Ricks is OVERRULED. The Court notes that although there is no POS attached to the Demurrer, it was apparently served on the plaintiff as his counsel discusses it in his 7/3/23 Status Report to the Court. The Court therefore rules on the merits of the Demurrer as follows. The role of a Demurrer is "to test the legal sufficiency of a complaint." (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994, citations omitted.) In ruling on the demurrer, the court "treats the Demurrer as admitting all material facts properly pleaded." "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (<i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38.) Here, defendant argues that it was not plaintiff's employer and that the causes of action therefore fail. These facts contradict the allegations in the complaint which are that plaintiff was employed by Wine Cellar Designers Group, LLC. Accordingly, the Demurrer is OVERRULED. Defendant to answer within 20 days. <i>Counsel for moving party is ordered to give notice of this ruling.</i>
4.	Western Overseas Corporation v. Seaways Shipping and Logistics Limited 23-1314361	The unopposed Motion to be Relieved as Counsel of Record, filed by Jessie Gessin and Gessin Ltd. as to representation of defendant Seaways Shipping and Logistics Limited is GRANTED. The Court will add the 10/27/23 CMC to Para. 8 of the proposed Order and the Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. <i>Moving counsel is ordered to give notice of this ruling</i>

5.	Emery v. Marovic 22-1267207	(Off calendar)
6.	Ngo v. Hanh Phuoc Enterprises, Inc. 21-1233241	Before the Court are two motions. The first motion is by Attorney Jon McGrath to be relieved as counsel for defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen ("Defendants"). That motion is DENIED. The second motion is by defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen to continue trial. That motion is GRANTED as set forth herein. MOTION TO BE RELIEVED AS COUNSEL Jon McGrath seeks to be relieved as counsel for the Defendants because they have not paid his fees as required under the retainer agreement. <i>Rule of Court 3.1326</i> sets forth the mandatory requirements for this motion. Mr. McGrath failed to comply with <i>Rule 3.1362(c), (d) and (e)</i>. Mr. McGrath did not use the mandatory declaration form, MC-052, required by <i>3.1362(c)</i>. Instead, he prepared his own declaration where he described at length how the clients had not been paying him and how he had financial difficulty but the declaration he submitted did not cover the topics in the mandatory Form MC-052. Mr. McGrath did not comply with the service requirements set forth in <i>3.1362(d)</i>. There is no declaration stating that the clients' address had been confirmed within 30 days. Also, the Court notes that there are inconsistencies regarding the address of the defendants. There is a POS attached to the motion which shows that the two clients were served by mail at 624 Manchester Ave., Los Angeles, CA 90001. However, there is reference in Exhibit 2 to the defendants having a different address. Mr. McGrath also did not comply with <i>Rule 3.1362(e)</i> which requires a that a "proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers." Accordingly, for the foregoing reasons, the motion by Jon McGrath to be relieved as counsel is DENIED. MOTION TO CONTINUE TRIAL <i>CRC 3.1332(c)</i> states that "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." "A motion for continuance is